

Amendment No. 1 to HB0638

Terry
Signature of Sponsor

AMEND Senate Bill No. 1389

House Bill No. 638*

by deleting subsection (b) in SECTION 1 and substituting:

(b) A healthcare provider who participates in a medical assistance health benefit plan, including a provider participating in the provider network of a managed care organization that contracts with the bureau of TennCare to provide services under a medical assistance health benefit plan, shall not refuse to provide healthcare services to an enrollee based on the enrollee's refusal or failure to obtain a vaccine or immunization if the enrollee, or if the enrollee is a minor, the enrollee's parent or legal guardian, has a religious or moral objection to the vaccine or immunization.

AND FURTHER AMEND by deleting subsection (e) in SECTION 1 and substituting:

- (e) This section does not apply to a provider who is a specialist in:
- (1) Oncology;
 - (2) Organ transplant services; or
 - (3) Treating patients who are immunocompromised, including patients who are immunocompromised because of a disease or as a result of treatment for a disease.

AND FURTHER AMEND by deleting subsection (f) in SECTION 1 and substituting:

- (f)
- (1) The director shall adopt rules necessary to implement this section, including rules establishing:

(A) A process by which an enrollee, the parent or legal guardian of an enrollee who is a minor, or another person may report an alleged violation of this section to the bureau;

(B) The right of a provider who is alleged to have violated this section to seek administrative and judicial review of the alleged violation;

(C) An opportunity for the individual who reported the alleged violation to attend and provide testimony at a hearing, if any, conducted as part of the administrative and judicial review process established pursuant to subdivision (f)(1)(B); and

(D) A process by which the individual who reported the alleged violation may appeal a final decision rendered as part of the administrative and judicial review process established pursuant to subdivision (f)(1)(B).

(2) The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

AND FURTHER AMEND by deleting subsection (g) in SECTION 1.